

1 ENGROSSED SENATE
2 BILL NO. 137

By: Hamilton of the Senate

3 and

4 Wilk and Turner of the
5 House

6
7 An Act relating to the Department of Corrections;
8 amending 57 O.S. 2021, Section 510.9, which relates
9 to the Electronic Monitoring Program; modifying
10 elements of program eligibility; updating statutory
11 language; updating statutory reference; and providing
12 an effective date.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 1. AMENDATORY 57 O.S. 2021, Section 510.9, is
15 amended to read as follows:

16 Section 510.9. A. There is hereby created the Electronic
17 Monitoring Program for inmates in the custody of the Department of
18 Corrections who are sentenced for a nonviolent ~~offense~~ crime not
19 included as a violent ~~offense~~ crime defined in Section 571 of this
20 title. The Department is authorized to use an electronic monitoring
21 global positioning device to satisfy its custody duties and
22 responsibilities.

23 B. After an inmate has been processed and received through a
24 Department Assessment and Reception Center, has a home offer, and
has met the criteria established in subsection C of Section 521 of

1 this title, the Director of the Department of Corrections may assign
2 the inmate, if eligible, to the Electronic Monitoring Program. The
3 following inmates, youthful offenders, and juveniles shall not be
4 eligible for assignment to the program:

5 1. Any inmate serving a sentence of more than ten (10) years
6 who has one thousand ninety-five (1,095) days or more left on the
7 sentence;

8 2. Inmates convicted of a violent offense within the previous
9 ten (10) years or convicted of a violation enumerated in Section
10 13.1 of Title 21 of the Oklahoma Statutes;

11 3. Inmates convicted pursuant to Section 11-902 of Title 47 of
12 the Oklahoma Statutes who are not receptive to substance abuse
13 treatment and follow-up treatment;

14 4. Inmates deemed by the Department to be a security risk or
15 threat to the public;

16 5. Inmates requiring educational, medical, or other services or
17 programs not available in a community setting as determined by the
18 Department;

19 6. Inmates convicted of any crime related to domestic abuse as
20 provided for in Section 644 of Title 21 of the Oklahoma Statutes or
21 who have an active protection order that was issued under the
22 Protection from Domestic Abuse Act;

23 7. Inmates who have outstanding felony warrants or detainers
24 from another jurisdiction;

1 8. Inmates convicted of a sex offense who, upon release from
2 incarceration, would be required by law to register pursuant to the
3 Sex ~~Offender~~ Offenders Registration Act;

4 9. Inmates convicted for any crime against a child or abuse
5 pursuant to Section 843.5 of Title 21 of the Oklahoma Statutes;

6 10. Inmates convicted of exploitation of a vulnerable adult
7 pursuant to Section 843.3 of Title 21 of the Oklahoma Statutes;

8 11. Inmates convicted of racketeering activity as defined in
9 Section 1402 of Title 22 of the Oklahoma Statutes;

10 12. Inmates convicted pursuant to subsection F of Section 2-401
11 of Title 63 of the Oklahoma Statutes;

12 13. Inmates convicted pursuant to Section 650 of Title 21 of
13 the Oklahoma Statutes;

14 14. Inmates convicted pursuant to subparagraph B of Section 11-
15 904 of Title 47 of the Oklahoma Statutes;

16 15. Inmates who have escaped from a medium or maximum custody
17 penal or correctional institution within the previous ten (10)
18 years; or

19 ~~15.~~ 16. Inmates who currently have active misconduct actions on
20 file with the Department of Corrections.

21 C. Every eligible inmate assigned to the Electronic Monitoring
22 Program shall remain in such program until one of the following
23 conditions has been met:

24 1. The inmate discharges the term of the sentence;

1 2. The inmate is removed from the Electronic Monitoring Program
2 for violation of any rule or condition of the program and reassigned
3 to imprisonment in a correctional facility; or

4 3. The inmate is paroled by the Governor pursuant to Section
5 332.7 of this title.

6 D. After an inmate has been assigned to the Electronic
7 Monitoring Program, denial of parole pursuant to Section 332.7 of
8 this title, shall not be cause for removal from the program,
9 provided the inmate has not violated the rules or conditions of the
10 program. The inmate may remain assigned to the program, if
11 otherwise eligible, until the completion of the sentence. Loss of
12 eligibility for the program shall result in removal of the inmate
13 from the program.

14 E. The Electronic Monitoring Program shall require active
15 supervision of the inmate in a community setting by a correctional
16 officer or other employee of the Department of Corrections with
17 monitoring by a global positioning device approved by the Department
18 under such rules and conditions as may be established by the
19 Department. If an inmate violates any rule or condition of the
20 program, the Department may take necessary disciplinary action
21 consistent with the rules established pursuant to this section
22 including reassignment to a higher level of security or removing the
23 inmate from the program with reassignment to imprisonment in a
24 correctional facility. Any inmate who escapes from the Electronic

1 Monitoring Program shall be subject to the provisions of Section 443
2 of Title 21 of the Oklahoma Statutes.

3 F. Upon an inmate assigned to the Electronic Monitoring Program
4 becoming eligible for parole consideration, pursuant to Section
5 332.7 of this title, the Department of Corrections shall deliver the
6 inmate, in person, to a correctional facility for an interview,
7 together with any Department records necessary for the Pardon and
8 Parole Board's investigation. Inmates assigned to the Electronic
9 Monitoring Program shall not be allowed to waive consideration or
10 recommendation for parole.

11 G. Prior to placement of any eligible inmate assigned to the
12 Electronic Monitoring Program ~~being placed~~ in a community setting,
13 the Department of Corrections shall deliver a written notification
14 to the sheriff and district attorney of the county, and the chief
15 law enforcement officer of any incorporated city or town in which
16 the inmate is to be monitored and supervised under the program. The
17 Department of Corrections shall provide notice of the projected date
18 of release of an inmate to the designated Oklahoma victim
19 notification service provider within sixty (60) days but not less
20 than seven (7) days prior to the projected date of release of the
21 inmate.

22 H. An inmate assigned to the Electronic Monitoring Program may
23 be required to pay the Department of Corrections for all or part of
24 any monitoring equipment or fee, substance abuse treatment program

1 or follow-up treatment expense, supervision cost, or other costs
2 while assigned to the program. The Department shall determine
3 whether the inmate has the ability to pay all or part of such fee or
4 costs.

5 I. The Department of Corrections shall develop policies and
6 procedures necessary to implement the Electronic Monitoring Program
7 including, but not limited to, methods of monitoring and
8 supervision, disciplinary action, reassignment to higher and lower
9 security levels, removal from the program, and costs of monitoring
10 and supervision to be paid by the inmate, if any.

11 J. An inmate assigned to the Electronic Monitoring Program
12 shall, within thirty (30) days of being placed in a community
13 setting, report to the court clerk and the district attorney of the
14 county from which the judgment and sentence resulting in
15 incarceration arose to address payment of any fines, costs,
16 restitution, and assessments owed by the inmate, if any.

17 SECTION 2. This act shall become effective November 1, 2026.
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1 Passed the Senate the 24th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives